

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	28-07-2026 12:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	28-07-2026 12:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Mines
विभाग का नाम/Department Name	Hindustan Copper Limited
संगठन का नाम/Organisation Name	Hindustan Copper Limited
कार्यालय का नाम/Office Name	Kolkata Corporate Office
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :panduranga_lm@hindustancopper.com Buyer Email id: buycon5.hcl.jh@gembuyer.in
कुल मात्रा/Total Quantity	3500
वस्तु श्रेणी /Item Category	XLPE Cable for Working Voltage up to and Including 1.1 KV Marked To IS 7098 (Part 1) (Q2)
वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover	Yes Complete
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years Of Experience and Turnover	Yes Complete
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेन् है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या / Minimum number of bids required to disable automatic bid extension	3

बिड विवरण/Bid Details	
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	XLPE Cable for Working Voltage up to and Including 1.1 KV Marked To IS 7098 (Part 1)
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	3 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 45 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
-------------------	----

ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
-------------------	----

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
--	----

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
3. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
4. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall upload the supporting documents to prove his eligibility for Relaxation.
5. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within $L-1+ 15\%$ (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.
6. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any

impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

XLPE Cable For Working Voltage Up To And Including 1.1 KV Marked To IS 7098 (Part 1) (1000 meter)

Bis Required	Yes
--------------	-----

तकनीकी विशिष्टियाँ /Technical Specifications

* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
STANDARD	Cables suitable for use in mines	Yes, No
GENERIC	Classification of cables for improved fire performance category	01, C1 - FR, C2 - FR-LSH
	Nominal Area of Conductor (in Sq mm)	2.5
	Number of Cores	3
CONSTRUCTION	Material of Conductor	Plain Copper
	Construction of the conductor	Solid, Stranded, Stranded and shaped
	Type of Inner Sheath	Vulcanized rubber, Un-vulcanized rubber, Thermoplastic
ARMOURING	Type of Cable	Armoured cable, Un-armoured cable
	Material of Armouring	Galvanized round steel wire, Galvanized steel formed wire, Aluminium round wire, Aluminium flat strip, Not applicable for Un-armoured cable
	Type of Armouring	Single wire, Double wire, Single strip, Double strip, Not applicable for Un-armoured cable
OUTER SHEATH	Type of Outer Sheath	PVC-ST2
PACKING AND MARKING	Cable Wound on	ISI Marked Wooden drum

Additional Specification Parameters - XLPE Cable For Working Voltage Up To And Including 1.1 KV Marked To IS 7098 (Part 1) (1000 meter)

Specification Parameter Name	Bid Requirement (Allowed Values)
------------------------------	----------------------------------

Specification Parameter Name	Bid Requirement (Allowed Values)
Copper Flexible 3 Core 2.5 Sq mm 1kV Grade PVC insulated Wire	3 Core x 2.5 Sq.mm flexible copper cable • Annealed electrolytic grade multi-stranded copper conductor • PVC insulated and PVC sheathed • Voltage Grade: 1.1 kV • Conforming to IS 694 / IS 1554 latest edition • Flame retardant and suitable for industrial applications • Core colour identification as per IS standards • ISI marked material preferred, other details as per ATC.

* Bidders offering must also comply with the additional specification parameters mentioned above.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Deepak Imrat Shiv	832103, Post- Moubhandar, Sub-division - Ghatsila, Dist- East-Singhbhum, Jharkhand- 832103	1000	60

XLPE Cable For Working Voltage Up To And Including 1.1 KV Marked To IS 7098 (Part 1) (1500 meter)

Bis Required	Yes
--------------	-----

तकनीकी विशिष्टियाँ /Technical Specifications

[* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
STANDARD	Cables suitable for use in mines	Yes, No
	Cables suitable for use in low temperature applications	Yes, No
GENERIC	Classification of cables for improved fire performance category	01, C1 - FR, C2 - FR-LSH
	Nominal Area of Conductor (in Sq mm)	6
	Number of Cores	2
CONSTRUCTION	Material of Conductor	Aluminium
	Construction of the conductor	Solid, Stranded, Stranded and shaped
	Type of Inner Sheath	Vulcanized rubber, Un-vulcanized rubber, Thermoplastic
ARMOURING	Type of Cable	Armoured cable, Un-armoured cable
	Material of Armouring	Galvanized round steel wire, Aluminium round wire

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
	Type of Armouring	Single wire, Double wire, Single strip, Double strip, Not applicable for Un-armoured cable
OUTER SHEATH	Type of Outer Sheath	PVC-ST2
PACKING AND MARKING	Cable Wound on	ISI Marked Wooden drum, Non ISI Marked Wooden drum

Additional Specification Parameters - XLPE Cable For Working Voltage Up To And Including 1.1 KV Marked To IS 7098 (Part 1) (1500 meter)

Specification Parameter Name	Bid Requirement (Allowed Values)
Aluminium 2 Core 6 Sq mm XLPE insulated Armoured	2 Core x 6 Sq.mm Aluminium conductor cable • XLPE insulated, PVC sheathed • Voltage Grade: 1.1 kV • Conductor conforming to IS 8130 • Cable conforming to IS 7098 (Part-1) latest edition • FR PVC outer sheath preferred • Suitable for continuous operating temperature up to 90°C • ISI marked with manufacturer name, size and voltage grade printed on cable, other details as per ATC

* Bidders offering must also comply with the additional specification parameters mentioned above.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Deepak Imrat Shiv	832103, Post- Moubhandar, Sub-division - Ghatsila, Dist- East-Singbhum, Jharkhand- 832103	1500	60

XLPE Cable For Working Voltage Up To And Including 1.1 KV Marked To IS 7098 (Part 1) (1000 meter)

Bis Required	Yes
--------------	-----

तकनीकी विशिष्टियाँ /Technical Specifications

[* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
STANDARD	Cables suitable for use in mines	Yes, No

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
GENERIC	Classification of cables for improved fire performance category	01, C1 - FR, C2 - FR-LSH
	Nominal Area of Conductor (in Sq mm)	16
	Number of Cores	3.5
CONSTRUCTION	Material of Conductor	Aluminium
	Construction of the conductor	Solid, Stranded, Stranded and shaped
	Type of Inner Sheath	Vulcanized rubber, Un-vulcanized rubber, Thermoplastic
ARMOURING	Type of Cable	Armoured cable
	Material of Armouring	Galvanized round steel wire, Galvanized steel formed wire, Aluminium round wire, Aluminium flat strip, Not applicable for Un-armoured cable
	Type of Armouring	Single wire, Double wire, Single strip, Double strip, Not applicable for Un-armoured cable
OUTER SHEATH	Type of Outer Sheath	PVC-ST2
PACKING AND MARKING	Cable Wound on	ISI Marked Wooden drum

Additional Specification Parameters - XLPE Cable For Working Voltage Up To And Including 1.1 KV Marked To IS 7098 (Part 1) (1000 meter)

Specification Parameter Name	Bid Requirement (Allowed Values)
Aluminium 3.5 Core 16 Sqmm XLPE insulated Cable Armoured	3½ Core × 16 Sq.mm Aluminium conductor cable • XLPE insulated, PVC sheathed • Voltage Grade: 1.1 kV • Conductor conforming to IS 8130 • Cable conforming to IS 7098 (Part-1) latest edition • Armoured/Unarmoured as required • FR PVC outer sheath preferred • Suitable for operating temperature up to 90°C • Core identification and ISI marking as per relevant standards, other details as per ATC.

* Bidders offering must also comply with the additional specification parameters mentioned above.

प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
---------------	--	-------------	------------------	------------------------------

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Deepak Imrat Shiv	832103,Post- Moubhandar, Sub-division - Ghatsila, Dist-East-Singhbhum, Jharkhand-832103	1000	60

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Generic

Actual delivery (and Installation & Commissioning (if covered in scope of supply)) is to be done at following address

Store-in-Charge, Mosaboni Mines Store
Hindustan Copper Limited, Indian Copper Complex
Post: Mosaboni
Distt. East Singhbhum,
Jharkhand 832104

3. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

Sub: Procurement of Copper Cable and Aluminium Cable for MSB Plant, through GeM Portal.

Dear Sirs,

ONLINE Tenders are invited through above portal from in **Two-Part Bid** system for supply of following materials at our Indian Copper Complex Unit, Post – Moubhandar, Sub-Division-Ghatsila, Dist. East Singhbhum, Jharkhand 832103: -

Sr. No.	Material Code	Material Description	Unit	Qty.
1	090300115	Copper Flexible 3 Core 2.5 Sq mm 1kV Grade PVC insulated Wire	Meter	1000
2	090300135	Aluminium 3.5 Core 16 Sqmm XLPE insulated Cable Armoured	Meter	1000

3	090390079	Aluminium 2 Core 6 Sq mm XLPE insulated Armoured	Meter	1500
---	-----------	--	-------	------

Sr. No.	Item Description	Technical Specification	Unit	Qty
1	Aluminium 2 Core 6 Sq.m m XLPE Insulated Cable	• 2 Core × 6 Sq.mm Aluminium conductor cable • XLPE insulated, PVC sheathed • Voltage Grade: 1.1 kV • Conductor conforming to IS 8130 • Cable conforming to IS 7098 (Part-1) latest edition • FR PVC outer sheath preferred • Suitable for continuous operating temperature up to 90°C • ISI marked with manufacturer name, size and voltage grade printed on cable	Meter	1500
2	Aluminium 3 ½ Core 16 Sq.mm XLPE Insulated Cable	• 3½ Core × 16 Sq.mm Aluminium conductor cable • XLPE insulated, PVC sheathed • Voltage Grade: 1.1 kV • Conductor conforming to IS 8130 • Cable conforming to IS 7098 (Part-1) latest edition • Armoured/Unarmoured as required • FR PVC outer sheath preferred • Suitable for operating temperature up to 90°C • Core identification and ISI marking as per relevant standards	Meter	1000
3	Copper Flexible 3 Core 2.5 Sq.mm, 1 kV Grade PVC Insulated Wire	• 3 Core × 2.5 Sq.mm flexible copper cable • Annealed electrolytic grade multi-stranded copper conductor • PVC insulated and PVC sheathed • Voltage Grade: 1.1 kV • Conforming to IS 694 / IS 1554 latest edition • Flame retardant and suitable for industrial applications • Core colour identification as per IS standards • ISI marked material preferred	Meter	1000

General Conditions

1. Material supplied shall be new and unused.
2. Test certificates shall be submitted along with supply.
3. ISI marked material shall be preferred.
4. Warranty against manufacturing defects shall be provided by supplier/manufacturer.
5. The cables to be supplied in a non-refundable wooden drum of 500mtr. length each for each category of cable.
6. Make of cable: Polycab/KEC/Havells/Mescab/Gloster/Universal/Cable Corporation of India/Crystal /Gemscab/Helu/RPG/KEI.
7. Length of each cable shall be as per qty. mentioned with tolerance of +/- 5%.

Important Note:

- (1) Only Payment term 30 days credit after receipt will be accepted.
- (2) Delivery Period: Immediately but within 60 days from the date of receipt of PO.
- (3) Inspection of materials at our stores will be final.
- (4) **Price submission by the bidders either in hard copy or in the techno-commercial part-I bid or in their letter head shall be summarily rejected.**
- (5) Offer must be submitted FOR destination, delivery of materials at our Mosabani Mines Store, Mosabani basis. Supplier shall arrange transporter and deliver materials as freight paid basis

- (5) **Delivery Address:** Store-in-Charge, Hindustan Copper Limited, Indian Copper Complex, Mosaboni Mines Stores, Post: Mosaboni, Distt. East Singhbhum, Jharkhand – 832104.
- (6) The L-1 bidder will be decided on Overall L-1 basis with all cost component up to delivery at our Mosaboni Mines Store.
- (7) Bidder shall mention the GST% of each individual line items in their technical part – I bid.

4. **Generic**

Bidder shall submit the following documents along with their bid for Vendor Code Creation:

- a. Copy of PAN Card.
- b. Copy of GSTIN.
- c. Copy of Cancelled Cheque.
- d. Copy of EFT Mandate duly certified by Bank.

5. **Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

6. **Generic**

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

7. **Buyer Added Bid Specific ATC**

Buyer uploaded ATC document [Click here to view the file.](#)

8. **Rate Contract**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

9. **Rate Contract**

Materials shall be guaranteed for 12 months from the date of commissioning or 18 months from the date of supply whichever is earlier.

10. **Rate Contract**

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

11. **Certificates**

Material Test Certificate Should Be Sent Along with The Supply. The Material Will Be Checked by Buyer's Lab & the Results of the Lab will be the Sole Criteria for Acceptance of the Item.

12. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Only supply of Goods

13. **Generic**

Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

14. Generic

The successful bidder has to supply all essential accessories required for the successful installation and commissioning of the goods supplied. Besides standard accessories as per normal industry practice, following accessories must be part of supply and cost should be included in bid price:

All cost including transportation of material with door delivery and unloading of material at our store

15. Generic

1. The Seller shall not assign the Contract in whole or part without obtaining the prior written consent of buyer.
2. The Seller shall not sub-contract the Contract in whole or part to any entity without obtaining the prior written consent of buyer.
3. The Seller shall, notwithstanding the consent and assignment/sub-contract, remain jointly and severally liable and responsible to buyer together with the assignee/ sub-contractor, for and in respect of the due performance of the Contract and the Sellers obligations there under.

16. Generic

Without prejudice to Buyer's right to price adjustment by way of discount or any other right or remedy available to Buyer, Buyer may terminate the Contract or any part thereof by a written notice to the Seller, if:

- i) The Seller fails to comply with any material term of the Contract.
- ii) The Seller informs Buyer of its inability to deliver the Material(s) or any part thereof within the stipulated Delivery Period or such inability otherwise becomes apparent.
- iii) The Seller fails to deliver the Material(s) or any part thereof within the stipulated Delivery Period and/or to replace/rectify any rejected or defective Material(s) promptly.
- iv) The Seller becomes bankrupt or goes into liquidation.
- v) The Seller makes a general assignment for the benefit of creditors.
- vi) A receiver is appointed for any substantial property owned by the Seller.
- vii) The Seller has misrepresented to Buyer, acting on which misrepresentation Buyer has placed the Purchase Order on the Seller.

17. Generic

While generating invoice in GeM portal, the seller must upload scanned copy of GST invoice and the screenshot of GST portal confirming payment of GST.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.

6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---